BOONE COUNTY PLANNING COMMISSION
BOONE COUNTY FISCAL COURTROOM
BURLINGTON, KENTUCKY
BUSINESS MEETING
SEPTEMBER 2, 2026
7:00 P.M.

Chairman Rolfsen opened the Business Meeting at 7:00 p.m. and welcomed the audience to the Planning Commission's September 2, 2026 Business Meeting. Chairman Rolfsen then invited everyone to join him in reciting the Pledge of Allegiance.

COMMISSION MEMBERS PRESENT:

Mr. Randy Bessler
Mrs. Kathy Clark
Mrs. Pamela Goetting
Ms. Corrin Gulick, Vice Chairwoman
Mr. Steve Harper, Temporary Presiding Officer
Mr. David Hincks
Mr. Thomas Judd
Mr. Rick Lunnemann
Mr. Joshua Nathan
Mr. Charlie Rolfsen, Chairman
Mr. Bob Schwenke
Mrs. Jackie Steele, Secretary/Treasurer
Mr. Tom Szurlinski

COMMISSION MEMBERS NOT PRESENT:

Mrs. Janet Kegley
Mr. Eric Richardson

LEGAL COUNSEL PRESENT:

Mr. Dale Wilson

STAFF MEMBERS PRESENT:

Mr. Michael Schwartz, Interim Executive Directo/Director, Zoning Services
Mr. Steve Lilly, PLS, GISP, Planner
Ms. Lauren Elliott, Planner

APPROVAL OF THE MINUTES:

Chairman Rolfsen stated that the Commissioners received copies of the minutes from the August 19, 2026 Business Meeting. He asked if there were any comments or corrections?

Mr. Hincks moved to approve the minutes as presented. Mr. Szurlinski seconded the motion, and it carried unanimously.

BILLS:

Mr. Michael Schwartz, Interim Executive Director, advised the Commissioners of the **Bills to be Paid,** which included a list of **Expenses** and **Salaries and Benefits** for a time period between August 6, 2026 and September 2, 2026.

EXPENSES:

Accounting Fees	949.13
Attorney Fees	5,250.00
Auto Expense	31.80
Consultant/Profess Svcs Fees	1,417.41
Filing Fees (CLURs)	700.00
GIS Operations	37,785.00
Legal Ads/Recruitment	571.89
Miscellaneous Expense	2,714.30
Office & Board Meeting Supplies	1,091.61
Office Equipment Expense	3,820.00
Office/Equipment Maintenance	692.40
Postage Expense	1,009.75
Printing/Pub/Dues/Subscriptions	388.44
Professional Development	522.94
TOTAL:	**$ 56,944.67**

SALARIES AND BENEFITS:

FICA-BCPC Portion	$ 8,233.52
Health/Dental/Life/LTD	19,855.64
Retirement – BCPC Portion	15,072.78
Salaries – Staff Expenses	111,469.06
Salaries – BCPC & BOA	1,595.00
TOTAL:	**$ 156,226.00**
GRAND TOTAL:	**$ 213,170.67**

Ms. Gulick moved that the bills (expenses and salaries and benefits) be approved and paid as presented and indicated approval of those items, which have been previously paid. Mrs. Goetting seconded the motion, and it carried unanimously.

ACTION ON PLAN REVIEWS:

ZONING MAP AMENDMENT, Corrin Gulick, Chairwoman, Steve Lilly, Staff

1. Request of **Kroger (applicant)** for **Richwood Pointe LLC (owner)** for: (1) a Zoning Map Amendment from Employment Planned Development (EPD) to Commercial Services (C-3); (2) a Variance reducing the Buffer Yard A requirement from ten (10) feet to zero (0) feet along the new internal property line; and (3) a Special Sign District, for an approximate 20-acre area located along the northeast side of Paddock Drive, between Richwood Road and Stirrup Lane, approximately 1,100 feet northwest of Richwood Road, and along the northwest side of Frogtown Connector Road, approximately 1,100 feet north of Richwood Road, Boone County, Kentucky, having a Parcel Identification Number (PIDN) of 075.00-00-102.10. The request is for a zone change to allow the development of an approximate 99,000 square foot grocery, an approximate 7,565 square foot wine and spirits store, a fuel center, and an approximate 51,840 square foot multi-tenant retail/service building. **(Jurisdiction: Boone County)**

Staff Member, Steve Lilly, read the Committee Report, which recommended denial based upon the Committee Report and Findings of Fact.

At this time, Chairman Rolfsen asked if there was anyone in the audience who wanted to speak in favor or against the request.

Mr. Patrick Hughes, DBL Law, stated that he was present on behalf of the applicant and Kroger. Both the applicant and Kroger disagree with the Committee's recommendation. Traffic seems to be the focus of the Committee's recommendation. Neither Boone County Public Works nor KYTC has concluded on the record that the roadway network cannot accommodate the proposed development. Committee comments focused on operational considerations, access configurations, and requests for additional analysis. In response, Kroger's traffic engineer insured an addendum to the traffic impact study and provided additional analysis to address these comments. At no point has any of the traffic impact study been refuted on the record. The Committee's principal concern was the potential for cut-through traffic from Heritage Trails Subdivision associated with the proposed Paddock Drive access. Kroger's traffic engineer reviewed the roadway network of this subdivision and evaluated the five intersections located along Paddock Drive. Based on this analysis, the engineer concluded that each of these intersections is expected to continue operating at acceptable levels of service in both the AM and PM peak hours through the 2038 horizon year. There is nothing submitted in the record that refutes this. The traffic impact study assumes that only approximately 20% of the site traffic will utilize the Paddock Drive access, because that traffic is expected to originate primarily from Heritage Trails residents and a portion of Triple Crown residents who already use the local roadway network. There is no traffic beyond what is already using that roadway. That is an important distinction between existing traffic and new traffic. Our study shows that the development is not adding to traffic along Paddock Road beyond the existing residences. The relevant question is not whether every conceivable traffic concern has been eliminated, but instead whether competent engineering and evidence demonstrates that the transportation

network can function with the proposed improvements and access configuration. This record supports all three statutory findings necessary for approval of the zoning map amendment. It is consistent with the Comprehensive Plan. There have been changes. The C-3 district is more appropriate than the current EPD district. In recent decades the population has more than tripled in the surrounding area, increasing demand for amenities such as this proposal. This proposal provides for needed commercial amenities, significant private investment, and service that residences of a growing area want and need.

Deborah Cahill stated that she lives in a beautiful subdivision, but Paddock Drive does not have any sidewalks and people are forced to walk in the street, and the additional traffic is a concern. With the proposed design, cars will turn right onto Paddock Drive and make U-turns or turn around in private driveways.

Todd Cleveland stated that he lives on Paddock Drive and the proposed development will create more traffic on the roadway. Traffic from Frogtown Road will come down Paddock Drive to the development. The only reason Kroger wants to build now is to compete with Publix. There is no need for another Kroger. There are plenty of Kroger stores in the area. The intersection with Frogtown Road will not be able to handle additional traffic.

Greg Lang questioned the need for another grocery store.

Ms. Gulick moved, by Resolution to the Boone County Fiscal Court, to recommend denial of the Zoning Map Amendment request based on the Committee Report and Findings of Facts. The motion was seconded by Mr. Lunnemann.

Chairman Rolfson asked if the Commission wanted to discuss the issue.

Ms. Gulick stated that the Committee did not dispute the traffic impact study, because the traffic study showed that queue lengths at the proposed signal on Frogtown Connector Road could extend south past the northern entrance to the truck stop. That was an immediate concern. The Committee also discussed the curb cut onto Paddock Drive and the Committee determined that this access point was not appropriate due to potential cut-through traffic, U-turn movements, and pedestrian safety. Another concern was the orientation of the Kroger building having the truck service area/loading docks between the Kroger building and residences; the concern being a noise issue.

Chairman Rolfson stated that the Planning Commission reviews these requests based on land use issues and the relevant laws. Being a free market society, the Planning Commission does not review these requests from a marketability viewpoint.

With no further discussion, Chairman Rolfson called for a vote on the motion which passed unanimously.

Mr. Szurlinski asked if the Commission had to take action on the requested Variance and Special Sign District. Ms. Gulick stated that her motion for denial included those requests as well. Mr. Lunnemann stated that his second on the motion also included those requests. No Commission member wanted to change their vote.

ZONING MAP AMENDMENT, Corrin Gulick, Chairwoman, Michael Schwartz, Staff

2. Request of **Silverman and Company LLC (applicant)** for **Steven Witt and Streutker Development LLC (owners)** for a Zoning Map Amendment from Rural Suburban Estates/Union Town Overlay RSE/UTO) and Rural Suburban/Union

Town Overlay (RS/UTO) to Urban Residential One/Planned Development (UR-1/PD) for an approximate 32.96-acre area located at 8928, 8936, and 8946 Old Union Road, including the property having a Parcel Identification Number (PIDN) of 051.00-00-038.01, Boone County, Kentucky. The request is for a Zoning Map Amendment to allow a 340 multi-family dwelling unit development, to be annexed into the City of Florence. **(Jurisdiction: Boone County/Florence)**

Staff Member, Michael Schwartz, read the Committee Report, which recommended approval of the Zoning Map Amendment based upon the Committee Report, Findings of Facts, and Conditions.

At this time, Chairman Rolfsen asked if there was anyone in the audience who wanted to speak in favor or against the request?

Ms. Loren Wolf, DBL Law, stated that she is representing the applicant. The proposal has undergone extensive planning over a couple of years with Boone County, City of Florence, and KYTC. The record shows that many of the issues that have been raised have all been addressed. The City of Florence supports the proposal. The Boone County School District expressed support. KYTC has reviewed the traffic study, and the recommended traffic improvements have been incorporated into the plan to mitigate any impacts. The Zone Change Committee, after hearing the evidence and considering the issue, is recommending approval of the request. Only one legal finding under KRS 100 is necessary to grant a Zoning Map Amendment. The record clearly establishes that the proposal is in agreement with the Comprehensive Plan and that the existing zoning is inappropriate, while the proposed zoning is appropriate. The Comprehensive Plan must be read as a whole and the direction for this area is not limited to the Union Town Plan, which is more than 25 years old and warrants a major update. The Comprehensive Plan expressly recognizes development west and south of this area, including areas along US 42, for increased densities to promote a larger variety of housing types and offers opportunities for the needs of changing household demographics. This language directly supports the request. The proposed project provides for greater housing variety, open space areas, amenities, pedestrian connections, intensive buffering, transportation improvements, and right-of-way for future roadway development. The existing zoning is inappropriate, and the UR-1/PD zone is appropriate. The existing zoning does not reflect the development patterns surrounding the site, the available infrastructure, or the growth identified in the Comprehensive Plan. The proposed UR-1 zone, by contrast, is specifically intended to create an urban scale residential environment for compact housing types on land with adequate infrastructure and access to urban activity centers. That is where the PD really comes in. The Comprehensive Plan sets the direction, and the PD is intended to implement that. Section 1506 expressly provides that additional intensity may be justified by a mixed-use development and/or an amenity-oriented development with community or recreational facilities. The operative language is and/or. A project does not have to be traditional mixed-use if its intensity is independently supported by an amenity-oriented design. This proposal does all of that. It provides buffering, environmental preservation, and

future transportation connectivity. The developer has satisfied its burden by submitting a traffic impact study. KYTC has accepted not only its conclusions but also its methodology. All of its recommended changes to mitigate the impact have been incorporated into the plan. The study included future conditions using the annual growth factor that was accepted by KYTC. There is no evidence in the record contradicting that professional analysis. Generalized concerns and speculations cannot overcome the professional engineering evidence and KYTC's regulatory determination.

The pre-K issue was raised and discussed at the Committee level, which was answered by the traffic professional. The facility has multiple access points, traffic disperses throughout that network, school traffic is not expected to substantially overlap, and the roadway network can accommodate those future volumes. Speculation about cut-through movements is not supported by the traffic study or other professional evidence in the record. Emergency access was also reviewed. The record contains substantial evidence it is in agreement with the Comprehensive Plan and that the proposed UR-1/PD zone is appropriate. Florence supports the project, the school district supports it, KYTC reviewed it, and the decision must be based on substantial evidence, not speculation.

Mayor Larry Solomon, City of Union, stated "During my many years as Union Mayor, I have come to understand, maybe more than others, what residents of zip code 41091 like and dislike. It is why I can passionately vouch for them here tonight. Also, today is my birthday. This issue is important enough to be here on my birthday. While we do not contest the look and feel of the proposed development, what we do contest are density levels and the true traffic impact on the northern end of our city. Our reasons are three-fold. First, this project calls for 340 units at 10.3 per acre or 15.6 on the land the units are to be built upon. At the August 10 Committee Meeting, three members said the project complied with the 2045 Comprehensive Plan, adopted February 2026, just six months ago. The Comprehensive Plan calls for 8 multi-family units per acre, or 264 units on 32.96 acres, a far cry from 340. Therefore, it is clear this project does not comply with the new Comprehensive Plan. The sites, The Promenade and Village Terrace, as exceptions for justification. However, those projects were built and in place before the Comprehensive Plan was adopted just six months ago. Second, while the developer put into their proposal that they will build an emergency access road onto the City of Union's fully owned Frontage Road, we have grave concerns pertaining to any added usage of Frontage Road, emergency or otherwise, none of which the City of Union approves whatsoever. Frontage Road is a low maintained road that needs to be rebuilt or eliminated. If a snow/ice storm hits, it sometimes takes many days, up to a week, before crews get to treat it. This can have a profound impact if a future crisis or emergency hits and needed access is immediate. Frontage Road is also a low usage road. At Old Union Road, Frontage Road is too close to the traffic light at US 42 and Old Union Road. Increasing traffic from Frontage Road would significantly impact that intersection. That is way too crowded as is. In fact, that intersection is currently rated an F on the developer's year and a half old traffic study scale. Third, no matter what the developer has stated, Bowman Way itself and the traffic light at Bowman Way and US 42 will become a cluster if this project is approved. 340 to 680 vehicles going in and out of their project each day, added to 1,400 vehicles traveling north on US 42 in the AM and back in the PM, pre-school traffic, 18 school buses going in and out all day long, parent drop-offs and pick-ups, 120 employees driving to and from work, and

occasional training sessions that will accommodate up to 500 attendees. All going through this traffic light. The developer may say that over 10 years, the 2% growth compounded annually in their traffic study will cover all anticipated projects around that traffic light. They claim it will be a cluster for 5 years, then they claim it will normalize over time, say during the second 5 years. The key question is who will be here in years 5 – 10 to measure their stated claims. Corrin Gulick stated it right at the August 19 Committee meeting. She said the whole dynamic of this project changed when they applied for a federal grant for the Longbranch Road extension and it was denied. It was clear the developer hoped said extension would provide the project's appropriate second access road. Now, it is clear there is not enough road infrastructure to support this project. It should be put on hold until there is enough infrastructure to support it. At the public hearing for this project, over 200 residents showed up to strongly oppose this project. No one spoke for it. It is our hope that you recognize all the stated problems this project will generate and vote against or postpone this project until proper infrastructure is built."

Mr. Lunnemann moved, by Resolution to the Boone County Fiscal Court and City of Florence, to recommend approval of the Zoning Map Amendment request based on the Committee Report, Findings of Facts, and Conditions. The motion was seconded by Mr. Hincks.

Ms. Corrin Gulick stated that she believed that the Union Town Plan is not obsolete. The proposal is not a mixed-use development. The proposed recreation area is designed so that it is separated by a roadway from the bulk of the residential development. If the future Longbranch Road connection is made, all the amenities will be located to the south of the main roadway. Any residents wanting to access these amenities will have to cross that roadway. There are concerns regarding the queuing along Bowman Way, at the intersection with US 42. The traffic study showed that some of the right-turn lanes could conflict with through movements, creating an operational concern. One of the things that the traffic study did not address is the potential for cut-through traffic for those wanting to go south on US 42. Traffic could cut-through the Mexican restaurant parking lot and access onto the Old Union Road frontage road and then turn south onto US 42 at Old Union Road.

Mr. Steve Harper stated that he had reservations on the project. The Comprehensive Plan was adopted six months ago. The Comprehensive Plan designated six of the 33 acres as high suburban density residential at 8 units per acre, which is 50 homes. Twenty-four acres of the site is designated for suburban residential density at four units per acre, which is 98 homes, for a total of 148 homes. The proposal is for 340 homes, equating to 10.3 units per acre. This is 2.3 times more than what the plan recommends. Also, the PD Overlay is not warranted. Three hundred forty homes need two access points. The access onto Frontage Road is designated for emergency access only. Their own report indicated that they were depending on the new Longbranch Road connector as being one of their access points. The grant for that road was denied. The infrastructure is not adequate for the proposal.

Mr. Tom Szurlinski stated that this is not a bad project, but the timing is way off. The growth factor of 2% is not realistic for the US 42 corridor. With all due respect to the professional traffic study, we live and drive in this area and we must inject a bit of reality into the analysis. The curb cut at Walgreens is particularly concerning, as it backs up on a routine basis. Without access to the future Longbranch Road connector, the request is premature.

Chairman Rolfson stated that the traffic studies do not reflect the existing situation with cars trying to enter/exit the existing businesses on Bowman Way. He stated that during the public hearing, Mr. Silverman stated that they do not need to connect to the future Longbranch Road connector. There are over 4,500 apartment units that have been approved but have not yet been constructed or completed.

Ms. Jackie Steele stated that the room was full of people at the public hearing and not one person was in favor of this request.

Mr. Bob Schwenke stated that the Comprehensive Plan was just adopted and this type of development was never contemplated for this area.

Ms. Kathy Clark stated that the school district property was not included in the traffic study.

Chairman Rolfsen asked for a vote, which found Mr. Hincks and Mr. Lunnemann in favor and Mr. Bessler, Ms. Clark, Ms. Goetting, Ms. Gulick, Mr. Harper, Mr. Judd, Mr. Nathan, Chairman Rolfsen, Mr. Schwenke, Ms. Steele, and Mr. Szurlinski opposed. The motion failed by a vote of 2 to 11.

Mr. Schwartz distributed Alternate Findings of Fact for denial and read them into the record.

At this time, Chairman Rolfsen asked if the applicant wanted to speak regarding the Alternate Findings of Fact for denial.

Ms. Wolf stated that the school board officially provided a statement of approval for the request. The school board member present at the public hearing was speaking as an individual. The future Longbranch Road connector has been designed to be located along the edge of the property and not cut through the site. The traffic study identified improvements that would have to be made to Bowman Way, and the applicant has agreed to implement those improvements. There is no traffic on Frontage Road that would empty into this development. The proposed development does not require access to Longbranch Road.

Mr. Ryan Silverman stated that Longbranch Road will not cut through the site. They intend to donate the right-of-way along the edge of the site for the roadway. Residents that want to access the proposed amenities will be able to walk on sidewalks and cross the street at designated crosswalks. How will the Longbranch Road connector interfere with the site?

Ms. Gulick replied that at the public hearing, a graphic was shown with the Longbranch Road connector and that the internal street system would connect to that roadway. Whether the connector road is built or not, it is not a preferable design to have all the residents on one side of the internal roadway and all the amenities on the opposite side of the internal roadway.

Mr. Silverman stated that they hired a reputable firm to conduct their traffic study, which states that the existing roadway system can accommodate the proposed development. The methodology and findings of the study were approved by KYTC. Why does the Planning Commission continue to not believe the study?

Chairman Rolfsen stated that the traffic study is not realistic with what is actually happening in the area.

Ms. Gulick stated that the traffic study did say that there are queues that could block the right turn onto US 42.

Mr. Silverman stated that the restriping of the lanes and the increase in the queue length will mitigate that concern.

Ms. Etta Reed, Bayer Becker Engineers, stated that the study did say that there is currently a queue issue at the US 42 intersection. However, the proposed improvements to Bowman Way will help the current situation and will meet all the KYTC requirements.

Mr. Schwartz stated that the Alternate Findings of Fact for denial do not include findings relative to the traffic study.

Mr. Szurlinski stated that while there is no mention of the traffic study, the Alternate Findings of Fact for denial do state the increase in density, which has a direct correlation to increased traffic.

At this time, Chairman Rolfsen asked if anyone in opposition wanted to speak regarding the Alternate Findings of Fact for denial. There were none.

Ms. Gulick moved, by Resolution to the Boone County Fiscal Court and City of Florence, to recommend denial of the Zoning Map Amendment request based on the Alternate Findings of Fact for denial. The motion was seconded by Mr. Harper.

Chairman Rolfsen asked for a vote which found Mr. Bessler, Ms. Clark, Ms. Goetting, Ms. Gulick, Mr. Harper, Mr. Judd, Mr. Nathan, Chairman Rolfsen, Mr. Schwenke, Ms. Steele, and Mr. Szurlinski in favor of the motion and Mr. Hincks and Mr. Lunnemann opposed. The motion passed by a vote of 11 to 2.

ZONING MAP AMENDMENT, Corrin Gulick, Chairwoman, Lauren Elliott, Staff

3. Request of **Drees Company (applicant)** for **Bleach Bottle Investments LLC** and **Gary W Neltner (owners)** for a Zoning Map Amendment from Agricultural Estate (A-2) to Suburban Residential One/Planned Development (SR-1/PD) for an approximate 185 acre area located along the west side of US 42, between Rice Pike and Bleu Yacht Lane, approximately one thousand (1,000) feet south of Rice Pike, including the properties located at 10917-10925 and 11063 US 42 and the properties having the following Parcel Identification Numbers (PIDN's) of 053.00-00-027.01 and 053.00-00-027.00, Boone County, Kentucky. The request is for a Zoning Map Amendment to allow the development of 335 dwelling units. **(Jurisdiction: Boone County)**

   THIS ITEM HAS BEEN DEFERRED TO THE 9/16/2026 ZONE CHANGE COMMITTEE MEETING AT 5:00 P.M. EST/4:00 P.M. CST

ZONING MAP AMENDMENT, Janet Kegley, Chairwoman, Michael Schwartz, Staff

4. Request of **Athena Hospitality Group (applicant)** for **JDV Ventures LLC (owner)** for a Zoning Map Amendment from Commercial Two/Planned Development/Houston-Donaldson Study Corridor Overlay (C-2/PD/HDO) to Office Two/Planned Development/Houston-Donaldson Study Corridor Overlay (O-2/PD/HDO) for an approximate 14.64-acre area located at 4700 Houston Road, Florence, Kentucky. The request is for a Zoning Map Amendment to allow the development of: (1) a 14,000 square foot, 1-story, restaurant; (2) a 15,386 square foot, 2-story, office building; (3) a 109,000 square foot, 7-story, hotel; and (4) a 152,000 square foot, 7-story, hotel. **(Jurisdiction: Florence)**

Staff Member, Michael Schwartz, read the Committee Report, which recommended approval of the Zoning Map Amendment based upon the Committee Report, Findings of Facts, and Conditions. The Committee Members voted unanimously in favor of the request. The condition letter has been signed by the property owner/applicant.

Chairman Rolfsen asked if there was anyone in the audience who wanted to speak in favor or against the request?

Mr. Daniel Whitley, Arnold Consulting Engineers, stated that the applicant is in agreement with all the conditions and is present to answer any questions.

Seeing no further comment, Mr. Lunnemann moved, by Resolution to the City of Florence, to recommend approval of the Zoning Map Amendment based on the Committee Report, Findings of Fact and Conditions. Mr. Szurlinski seconded the motion, and it passed unanimously.

NEW BUSINESS:

Mrs. Goetting moved to schedule the Public Hearings for Items #5, #6, #7, and #8 on October 7, 2026, at 7:30 p.m. in the Boone County Fiscal Courtroom. Mr. Nathan seconded the motion, and it passed unanimously.

INTERIM EXECUTIVE DIRECTOR'S REPORT

- No report

COMMITTEE REPORTS:

- Airport (Randy Bessler)
  No Report

- Administrative/Personnel (Tom Szurlinski)
  No Report

- Enforcement (Tom Szurlinski)
  No Report

- Long-Range Planning/Comprehensive Plan (Bob Schwenke)
  No Report

- Technical/Design Review (Rick Lunnemann)
  No Report

- Executive (Charlie Rolfsen)
  Chairman Rolfsen provided an update on the Executive Director position, stating that the Executive Committee will be meeting with the Northern Kentucky Area Development District.

CHAIRMAN'S REPORT: (Charlie Rolfsen)

- No report

OKI REPORT: (Randy Bessler)

- No Report

ADJOURNMENT:

There being no further business to come before the Planning Commission, **Mr. Bessler moved to adjourn the meeting. Mr. Judd seconded the motion, and it passed unanimously. The meeting was adjourned at 8:15 p.m.**

APPROVED

Charlie Rolfsen
Chairman

Attest:

Michael D. Schwartz
Interim Executive Director